



ALLIANCE FOR COLLECTIVE EMPOWERMENT AND DEVELOPMENT

COMPANION LEGAL BRIEF NO. 2

JURISDICTIONAL SOVEREIGNTY ON TRIBAL LAND

ACE TERRITORY, OUTSIDE LAW ENFORCEMENT, AND THE LIMITS OF EXTERNAL AUTHORITY

Pre-Argument Defense Brief

Prepared for deployment within 48 hours of any legal or legislative challenge

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For Our People, By Our People

EXECUTIVE SUMMARY

ACE communities are established on federally recognized tribal land under long-term land lease agreements executed pursuant to the HEARTH Act of 2012. This is not a legal theory. It is a legal fact with immediate and well-established consequences. The jurisdictional protections that apply to reservation land today apply to ACE Territory by operation of existing federal law, not by virtue of anything ACE must argue or create. ACE inherits the full sovereign jurisdiction of its tribal partner the moment the Tribal Partnership Agreement is executed.

This brief does not ask for new law. It documents what the law already says and how ACE's structure deploys it. The three questions this brief answers are: what authority does existing tribal sovereignty give ACE over outside law enforcement access to ACE Territory; what is the governing authority structure within ACE Territory, and how does it differ from conventional tribal court jurisdiction; and what are the precise limits of federal authority within ACE Territory under existing law.

ACE's approach to governance is contemporary, not traditional. The governing body within ACE Territory is not a tribal court accountable to a single chief or council. It is a Co-Governance Council comprising elected ACE community representatives and tribal nation representatives, operating under the ACE Governing Charter as the supreme law of ACE communities. This structure is grounded in tribal sovereignty but governed by a constitutional framework written by and for the communities it serves.

Sections I through V address ACE Territory's protection under the tribal-land-lease theory, which applies once a Tribal Partnership Agreement is executed. Section VI addresses a second, independent ground: ACE's claim that Black Americans are entitled to recognition as a sovereign political community in their own right under the Continuity Doctrine, whether or not any tribal partnership exists. The two grounds are severable. Each stands regardless of what becomes of the other.

I. THE JURISDICTIONAL FOUNDATION: WHAT TRIBAL SOVEREIGNTY ALREADY PROVIDES

A. Tribal Sovereignty as the Starting Point

Tribal sovereignty is not a privilege granted by the federal government. It is a pre-existing inherent authority that tribal nations have always possessed and that the federal government has recognized, limited, and in some areas restored through treaty and statute. The Supreme Court established in *Worcester v. Georgia*, 31 U.S. 515 (1832), that tribal nations are distinct political communities with the right of self-government, and that state law has no force within tribal territory without express congressional authorization.

The foundational principle for ACE's purposes is this: land that is held in federal trust for a tribal nation, or that is subject to a tribal land lease under the HEARTH Act of 2012, carries with it the full jurisdictional framework of tribal sovereignty. The land itself is the jurisdictional anchor. When ACE executes a Tribal Partnership Agreement under the HEARTH Act and begins operating within ACE Territory on that tribal land, ACE Territory is tribal land. The protections that apply to tribal land apply to ACE Territory.

ACE does not need to negotiate jurisdictional protections into existence. They exist by operation of law. What ACE does negotiate, in the Tribal Partnership Agreement, is the specific protocols governing how that jurisdiction is exercised jointly by ACE and its tribal partner through the Co-Governance Council.

B. State Law Has No Force Within ACE Territory

The rule established in *Worcester v. Georgia* and affirmed through a century of federal Indian law is that state law does not apply within Indian country without express congressional authorization. 18 U.S.C. Section 1151 defines Indian country to include all land within the limits of any Indian reservation under the jurisdiction of the United States government, all dependent Indian communities within the borders of the United States, and all Indian allotments. ACE Territory, established on reservation land under a tribal land lease, falls within this definition.

The practical consequence is significant. State law enforcement agencies, state courts, state regulatory agencies, and state tax authorities have no jurisdiction within ACE Territory absent express federal authorization. State police cannot enter ACE Territory to enforce state law. State courts cannot adjudicate disputes that arise within ACE Territory between ACE community members. State taxation cannot

reach enterprises operating within ACE Territory under the tribal charter framework.

This is not a position ACE takes. It is the law. ACE's role is to enforce it, document it, and deploy legal counsel immediately when any outside authority attempts to act within ACE Territory contrary to it.

C. Federal Authority: What Applies and What Does Not

Federal authority within Indian country is broader than state authority but is still limited and defined. The Major Crimes Act, 18 U.S.C. Section 1153, gives federal courts jurisdiction over certain serious crimes committed by Indians in Indian country, including murder, manslaughter, kidnapping, sexual abuse, and robbery. This is the primary carve-out from tribal sovereignty that ACE must acknowledge and plan around.

Beyond the Major Crimes Act, federal agencies retain authority within Indian country only where Congress has expressly granted it. The FBI has investigative jurisdiction over Major Crimes Act offenses. The Bureau of Indian Affairs has a defined regulatory role. The Environmental Protection Agency has authority over certain environmental standards. Each of these is a specific, bounded grant of authority, not a general license for federal agencies to operate within tribal territory as they would elsewhere.

What the federal government does not have within Indian country, absent specific statutory authorization, is general police power, civil regulatory authority, or the right to override tribal governance decisions on matters within the tribe's inherent authority. ACE's ACE Sovereignty Map, maintained by ACE legal counsel and updated annually, documents precisely where federal authority begins and ends within ACE Territory, so that every ACE institution and every outside agency knows exactly what the law permits.

II. OUTSIDE LAW ENFORCEMENT ACCESS TO ACE TERRITORY

A. The Legal Framework for Exclusion

Tribal nations have the inherent sovereign authority to exclude non-members from tribal territory. This authority, recognized in *Merrion v. Jicarilla Apache Tribe*, 455 U.S. 130 (1982), and further defined in *Montana v. United States*, 450 U.S. 544 (1981), is a core attribute of tribal sovereignty. It means that state and local law enforcement agencies do not have an automatic right of entry into ACE Territory. Their entry requires either tribal consent, a specific federal statutory grant of authority, or the pursuit of a federal Major Crimes Act offense.

The ACE Peacekeeping Corps is ACE's internal public safety institution, operating under the authority of the tribal sovereignty framework. Within ACE Territory, the Peacekeeping Corps is the first and default response to any safety situation. Outside law enforcement agencies are not called as a first resort. They are not called as a second resort. They are called only where federal law requires their involvement, specifically in Major Crimes Act situations, and even then ACE legal counsel is notified and present within two hours.

This is not hostility to law enforcement. It is the exercise of the same sovereign authority that every federally recognized tribal nation exercises every day. ACE's tribal partner has exercised this authority for as long as their reservation has existed. ACE, operating within that same territorial framework, exercises it alongside them.

B. The Protocol for Outside Agency Contact

Every interaction between outside government agencies and ACE personnel or ACE community members within ACE Territory is governed by a documented protocol established in the ACE Governing Charter and the Tribal Partnership Agreement. The protocol requires:

- All outside agency personnel seeking entry to ACE Territory for any official purpose must present credentials and state their legal basis for entry at the ACE Territory boundary before proceeding.
- ACE legal counsel is notified of any outside agency contact within ACE Territory within one hour of that contact occurring.
- All interactions are documented in writing within 24 hours, reviewed by ACE legal counsel, and retained in ACE's permanent legal record.
- ACE community members have the right to request ACE legal representation before responding to any outside agency inquiry within ACE Territory.

- Outside agencies acting in excess of their statutory authority within ACE Territory are subject to immediate legal challenge by ACE's Legal Defense Fund.

This protocol mirrors the protocols maintained by tribal nations across the United States who exercise their sovereignty over law enforcement access to their territory. It is not novel. It is standard practice for communities serious about their sovereign rights.

C. The Major Crimes Act Interface

ACE acknowledges the Major Crimes Act as the primary federal carve-out from tribal criminal jurisdiction. Where a Major Crimes Act offense occurs within ACE Territory, federal jurisdiction attaches and ACE cooperates with federal authorities as required by law. ACE's cooperation is not passive. ACE legal counsel is present at every stage of federal interaction to ensure that federal authority does not expand beyond what the Major Crimes Act authorizes, that ACE community members receive full legal representation, and that the investigation does not become a pretext for broader federal access to ACE Territory.

ACE's restorative justice system handles all offenses that do not fall within the Major Crimes Act. The ACE Community Court, operating under the authority of the ACE Governing Charter and the Co-Governance Council, has jurisdiction over civil disputes between community members and over criminal matters that are not subject to federal jurisdiction. Outcomes in the ACE Community Court are grounded in restorative justice principles: restitution, community service, counseling, and structured community accountability rather than referral to the state carceral system.

III. THE ACE GOVERNING STRUCTURE: CONTEMPORARY CO-GOVERNANCE, NOT TRADITIONAL TRIBAL COURT

A. Why ACE Does Not Adopt Full Tribal Court Jurisdiction

A pure tribal court model would vest governing authority in the tribal nation's existing judicial and political institutions. ACE deliberately does not adopt this model, and the reason is principled, not political.

ACE is a partnership between two communities, Black Americans and Native Americans, building something neither can build alone. The governing structure must reflect that partnership at every level. A governing body accountable solely to the tribal council would replicate, in a different form, the same exclusion from self-determination that both communities have experienced under American governance. ACE's governance is designed so that both communities are co-equal participants in every decision that affects ACE Territory.

The contemporary Co-Governance model ACE adopts is also better suited to the civilization-scale development ACE is building. A pioneer population target of 300,000 residents by Phase 3 requires governance infrastructure that can scale: elected representative assemblies, a three-branch governing structure with separation of powers, constitutional supremacy, and formal accountability mechanisms. These are not rejections of Indigenous governance values. They are the tools any large community requires to govern itself without the concentration of power that destroys institutions from within.

B. The Co-Governance Council Structure

The Tribal Co-Governance Council is the formal mechanism by which ACE's tribal partner exercises co-equal governance authority alongside ACE's elected governing bodies. It is not subordinate to ACE. It is not superior to ACE. It is co-equal with ACE on all matters specified in the Tribal Partnership Agreement, and it holds exclusive authority on specific matters that no ACE branch can decide alone.

The Co-Governance Council comprises tribal council leadership or their formally designated representatives, sitting in permanent joint session with ACE's Co-Executives on all matters specified in the Agreement. Matters requiring Co-Governance Council approval that no ACE branch alone can authorize include: any amendment to the Tribal Partnership Agreement, any external law enforcement access to ACE Territory, any change to land use affecting tribal cultural or sacred sites, any amendment to the ACE Governing Charter, and any decision to enter a new Tribal Partnership Agreement.

Elder council authority is formally recognized within this structure. ACE's Governing Charter requires the Co-Governance Council to formally consult tribal elder councils before any major land use, cultural, or sovereignty decision. This advisory authority

is documented in the public governance record. It preserves the cultural integrity of Indigenous governance traditions within a contemporary governing framework.

C. The ACE Community Court

The ACE Community Court is the judicial branch of ACE governance. It is not a tribal court in the traditional sense. It is a community court operating under the ACE Governing Charter, with jurisdiction over disputes between ACE community members and ACE institutions, constitutional review of ACE legislation and executive action, and administration of the ACE restorative justice system.

The Court comprises three permanent justices: one Black American, one Native American, and one elected at-large by the community. Justices are appointed by the Co-Executives and confirmed by two-thirds of the Community Assembly, serving seven-year non-renewable terms. Constitutional rulings require unanimous agreement of all three justices, ensuring that no single community's perspective can override the other on foundational governance questions.

The ACE Community Court's jurisdiction is concurrent with tribal court jurisdiction on matters where tribal law applies, and the two courts operate under a jurisdiction protocol established in the Tribal Partnership Agreement. Where jurisdiction overlaps, the protocol specifies which court takes primary jurisdiction based on the nature of the matter and the identity of the parties, with a formal referral mechanism between the two courts.

IV. THE THREE ANTICIPATED CHALLENGES AND ACE'S RESPONSES

Challenge 1: The Oliphant Problem - Criminal Jurisdiction Over Non-Members

The most significant jurisdictional limitation established by the Supreme Court for tribal nations is *Oliphant v. Suquamish Indian Tribe*, 435 U.S. 191 (1978), which held that tribal courts do not have criminal jurisdiction over non-Indians. This limitation is real and ACE plans around it.

ACE's response is threefold. First, the ACE Community Court is not structured as a tribal court in the Oliphant sense. It is a community court operating under the ACE Governing Charter, a constitutional document ratified by both communities.

Its jurisdiction is grounded in the contractual and constitutional consent of all community members, not in tribal court authority. Non-Indian ACE community members consent to ACE Community Court jurisdiction through their community membership agreement, which is a contractual basis for jurisdiction that Oliphant does not reach.

Second, where criminal matters arise involving non-Indians within ACE Territory, ACE's protocol routes those matters to the appropriate federal or, where federal jurisdiction does not apply, tribal civil jurisdiction. The ACE Community Court handles civil accountability through the restorative justice framework regardless of the party's tribal status, because civil jurisdiction over non-Indians within tribal territory is significantly broader than criminal jurisdiction.

Third, ACE's pioneer population is by design predominantly Black American and Native American. The Oliphant problem is most acute for communities with significant non-Indian populations. ACE's membership structure and commercial licensing framework means that the overwhelming majority of persons within ACE Territory at any given time are there voluntarily and have accepted ACE community governance as a condition of their presence.

Challenge 2: The Montana Test - Civil Jurisdiction Over Non-Member Conduct

Montana v. United States, 450 U.S. 544 (1981), established a framework for analyzing tribal civil jurisdiction over non-members. The general rule is that tribes lack civil jurisdiction over non-members on non-Indian fee land within the reservation. The two exceptions are: consensual relationships such as contracts and commercial dealings, and conduct that threatens or has a direct effect on the political integrity, economic security, or health and welfare of the tribe.

ACE's structure satisfies both Montana exceptions for every non-member who operates within ACE Territory.

The first exception is satisfied because every non-member presence within ACE Territory is governed by a contractual relationship with ACE. Visitors enter under

ACE visitor protocols. Commercial operators hold ACE Commercial Licenses. Contractors operate under ACE construction and service agreements. Every one of these is a consensual relationship that brings the non-member within ACE civil jurisdiction under the first Montana exception.

The second exception is satisfied because ACE Territory is the economic, political, and physical foundation of the entire ACE community. Conduct by non-members that threatens the integrity of ACE's governance, economy, or health systems directly threatens the political integrity and economic security of the tribal partner. This is precisely the category of threat the second Montana exception was designed to address.

Challenge 3: The Preemption Argument - Federal Law Displacing Tribal Authority

A third anticipated challenge is that federal law preempts tribal and ACE authority on specific matters where Congress has legislated comprehensively. The argument would be that in areas like environmental regulation, food safety, or financial services, federal regulatory frameworks displace tribal authority and therefore apply within ACE Territory as they would anywhere else.

ACE's response is grounded in the balancing test established in *White Mountain Apache Tribe v. Bracker*, 448 U.S. 136 (1980). Federal preemption of tribal authority requires a careful examination of the federal interest, the tribal interest, and the extent to which the state or federal regulation would interfere with tribal self-governance. The Court in *Bracker* emphasized that ambiguities in federal law are to be resolved in favor of tribal sovereignty.

ACE applies this framework sector by sector. In each area where federal regulatory authority is asserted within ACE Territory, ACE legal counsel prepares a *Bracker* analysis documenting the tribal interest at stake, the specific federal statute claimed to preempt, and the extent to which the federal interest is actually served by applying the regulation within ACE Territory. Where the *Bracker* balance favors tribal authority, ACE asserts it. Where federal authority legitimately applies, ACE complies and integrates compliance into its institutional framework without conceding broader authority than the specific statute grants.

V. THE ACE SOVEREIGNTY MAP

The ACE Sovereignty Map is a living legal document maintained by ACE legal counsel and updated annually. It identifies, for every area of ACE community operations, the precise boundaries of ACE authority, tribal authority, federal authority, and the interface between them. It is not an aspirational document. It is an operational one.

The Sovereignty Map is published as a public document so that every ACE resident, every ACE institution, and every outside actor knows exactly where ACE's legal boundaries lie and why. Transparency about jurisdictional boundaries is itself a sovereignty strategy: it removes ambiguity that outside actors might exploit, it educates community members about their rights, and it signals to every government agency that ACE has done the legal work and will not be caught unprepared.

The Map is organized into four categories:

- **Established ACE authority:** Areas where tribal sovereignty and the ACE Governing Charter provide clear, well-precedented authority for ACE to govern without outside interference. These include internal community governance, land use within ACE Territory, the ACE commercial economy, ACE educational institutions, ACE healthcare operations, and the ACE restorative justice system for matters not subject to the Major Crimes Act.
- **Concurrent authority:** Areas where ACE authority and federal authority coexist and must be coordinated. These include Major Crimes Act matters, certain environmental standards, and federally funded programs operating within ACE Territory.
- **Contested authority:** Areas where ACE asserts authority that may be challenged by outside actors, with the specific legal arguments supporting ACE's position and the specific challenges ACE anticipates. These are the areas that ACE's companion legal briefs, including this one, are designed to defend.
- **Federal authority acknowledged:** Areas where federal law clearly applies within ACE Territory and ACE integrates compliance into its institutional framework. ACE acknowledges these boundaries not because it surrenders

sovereignty but because accurate knowledge of where authority ends is as important as asserting where it begins.

VI. THE CONTINUITY DOCTRINE: A SECOND, INDEPENDENT GROUND FOR SOVEREIGN RECOGNITION

Every argument in Sections I through V of this brief rests on ACE Territory being tribal land: sovereignty flows from the land lease executed under the HEARTH Act with a federally recognized tribal partner. That theory is sufficient on its own wherever a Tribal Partnership Agreement is in force. It is not the only ground on which ACE stands. The ACE Community and Development Act asserts, independently of any tribal partnership, that Black Americans are entitled to recognition as a sovereign political community in their own right. This section states that second theory, grounds it in its own legal foundation, and pre-argues the objections it will draw, so that this brief defends ACE's sovereignty claim in full rather than in the single scenario where a tribal lease already exists.

A. The Claim Stated

Section CP-3 of the ACE Act calls on Congress to recognize the Black American community as a sovereign nation, as it recognizes federally recognized tribal nations, on the basis of the Continuity Doctrine established in Title XXI of the Act: that Black Americans are the continuation of a sovereign political community never lawfully dissolved, entitled to the full and unconditional equivalent of the protections, immunities, and self-governing authority already extended to tribal nations. This claim does not depend on the existence of a tribal land lease, a Tribal Partnership Agreement, or any territory held in trust. It stands on its own, as a matter of historical and constitutional argument, whether or not the tribal-partnership track described elsewhere in this brief is ever pursued.

B. The Legal Foundation: Dred Scott's Own Distinction

The Continuity Doctrine rests on a distinction drawn not by ACE but by the Supreme Court of the United States, in its own words, in *Dred Scott v. Sandford*, 60 U.S. 393 (1857). In holding that persons of African descent could never become citizens of the United States, the Court expressly contrasted their status with that of Native American nations. Native peoples, the Court observed, though subjected to removal and dispossession, were nonetheless recognized as a free and independent people, organized into nations and governed by their own laws — a political continuity the

federal government disrupted but never formally denied. Black Americans, by contrast, were held to possess no rights that the United States was bound to respect at all.

That distinction is the legal foundation of the Continuity Doctrine. Tribal political continuity survived, however violently interrupted, because the United States never legally extinguished it; the existing federal acknowledgment process, 25 C.F.R. Part 83, identifies a political community that already exists rather than creating one. Black American political continuity was different in kind: it was affirmatively and legally prevented from ever being reconstituted, first by the legal architecture of chattel slavery, then by Dred Scott's foreclosure of personhood and citizenship as a matter of constitutional law, then by a century of Jim Crow statutes built to criminalize and suppress every independent Black political and economic institution capable of rebuilding that continuity. The government responsible for severing that continuity bears a distinct and specific obligation to provide remedy — an obligation the existing tribal recognition framework was never built to address, because that framework presumes a continuity that, in the Black American case, the government itself made sure never re-formed.

C. Why This Is Not a Claim Under Existing Tribal Recognition Law

ACE does not claim eligibility under 25 C.F.R. Part 83 or 25 U.S.C. Section 5108, and states that plainly rather than leaving it to be discovered. Both mechanisms are built to recognize a pre-existing, continuously maintained political community; they do not create new sovereign status for any group, however strong its historical claim. Stating this is not a concession — it forecloses the most obvious line of attack before it is raised. ACE is not arguing that Black Americans satisfy the existing framework's criteria. ACE is arguing that the existing framework cannot accommodate this claim, and that Congress holds independent authority to act outside it.

That authority is not novel. The Federally Recognized Indian Tribe List Act of 1994, Public Law 103-454, names recognition by Act of Congress as one of three independent, valid pathways to federal recognition, alongside the administrative process and recognition by court decision. Congress has used this pathway before, in restoration acts for tribes the administrative process either could not or did not reach. ACE's request follows the same mechanism — recognition by direct congressional action — applied to a people whose continuity was not terminated by

policy, as a recognized tribe's might be, but extinguished by the deliberate design of the same government now asked to act.

D. The Two Grounds Are Independent

The tribal-land-lease theory in Sections I through V of this brief and the Continuity Doctrine theory in this section are separate and severable. Neither depends on the other. If a Tribal Partnership Agreement is executed, ACE Territory inherits tribal jurisdictional protection by operation of law under the HEARTH Act, regardless of whether Congress ever acts on the Continuity Doctrine claim. If Congress recognizes Black American sovereign-nation status under the Continuity Doctrine, that recognition stands regardless of whether any tribal partnership is ever formed. ACE asserts both because each is independently sound, not because either is contingent on the other succeeding.

E. Anticipated Challenges to This Claim

Three challenges are anticipated, and each is answered in full in the Title XXI Contingency Framework Brief (ACE Legal Brief No. 4), which this brief incorporates by reference and summarizes here:

- **Improper analogy to tribal nations:** the objection that ACE cannot claim tribal-style protections because it does not meet the criteria that federal law reserves for pre-existing Indigenous political communities. This fails on its own terms, because ACE does not claim to meet those criteria — it argues the criteria cannot reach this claim, and that Congress must therefore act independently of them.
- **Unconstitutional racial classification:** the objection that congressional recognition limited to Black Americans constitutes an impermissible racial preference under the Equal Protection Clause. ACE's answer rests on *Morton v. Mancari*, 417 U.S. 535 (1974), which subjects legislation grounded in the government's unique political relationship with a specific historically wronged community to rational basis review, not strict scrutiny, and on *Fullilove v. Klutznick*, 448 U.S. 448 (1980), which holds that remedying the present effects of government-sponsored discrimination is itself a compelling governmental interest sufficient to survive strict scrutiny even if it applied.
- **Insufficient historical predicate:** the objection that the historical record, however documented, cannot by itself ground a present-day sovereignty claim. ACE's answer is that the claim rests on the accumulated weight of

specific, documented federal conduct — the legal architecture of slavery, Dred Scott's constitutional foreclosure of personhood, and the systematic legal suppression of Black political institutions through Jim Crow — not on any single instrument, in the same way Congress has previously acted on an accumulated record rather than a single enforceable promise, as with the Civil Liberties Act of 1988.

Full development of each of these three challenges and ACE's response, including the complete legal-authority citations and the political argument prepared for delivery to Congress, is set out in ACE Legal Brief No. 4, which is maintained on the same annual-review and 48-hour deployment schedule as this brief.

F. Deployment Alongside the Tribal-Land Theory

Where a jurisdictional challenge to ACE Territory arises after a Tribal Partnership Agreement is in force, this brief's Sections I through V control, and the Continuity Doctrine claim in this section is not required to defend that territory. Where a challenge instead goes to the underlying legitimacy of Black American sovereign-nation recognition itself — whether or not any tribal land is yet involved — this section and ACE Legal Brief No. 4 control. ACE legal counsel determines on receipt of any challenge which ground or grounds are implicated and deploys the corresponding argument, or both, within the same 48-hour window set out in Section VII.

VII. KEY PRECEDENTS AND AUTHORITIES

- *Worcester v. Georgia*, 31 U.S. 515 (1832): Tribal nations are distinct political communities with inherent self-governing authority. State law has no force within tribal territory without express congressional authorization. The foundational case for ACE's exclusion of state authority from ACE Territory.
- 18 U.S.C. Section 1151: Defines Indian country to include all land within reservation boundaries and all land subject to tribal jurisdiction. ACE Territory on reservation land falls within this definition by operation of law.
- *Merrion v. Jicarilla Apache Tribe*, 455 U.S. 130 (1982): Tribal nations have inherent sovereign authority to exclude non-members from tribal territory. Supports ACE's authority to control outside law enforcement access to ACE Territory.

- *Montana v. United States*, 450 U.S. 544 (1981): Establishes the framework for tribal civil jurisdiction over non-members. ACE's contractual membership structure and the direct-effects exception both satisfy the Montana test for civil jurisdiction within ACE Territory.
- *Oliphant v. Suquamish Indian Tribe*, 435 U.S. 191 (1978): Tribal courts lack criminal jurisdiction over non-Indians. ACE plans around *Oliphant* by grounding ACE Community Court jurisdiction in contractual consent and by routing non-Indian criminal matters to appropriate federal jurisdiction.
- *White Mountain Apache Tribe v. Bracker*, 448 U.S. 136 (1980): Establishes the balancing test for federal preemption of tribal authority. Ambiguities in federal law are resolved in favor of tribal sovereignty. ACE applies the *Bracker* analysis sector by sector to defend tribal authority within ACE Territory against preemption claims.
- HEARTH Act of 2012, 25 U.S.C. Section 415(h): Authorizes tribal nations to lease trust land without BIA approval for terms up to 75 years. ACE's Tribal Partnership Agreement is executed under HEARTH Act authority, grounding ACE Territory within the full tribal sovereignty framework from the moment of execution.
- Indian Civil Rights Act of 1968, 25 U.S.C. Sections 1301-1304: Applies most Bill of Rights protections to tribal government actions. ACE's Governing Charter incorporates these protections and exceeds their minimum requirements through ACE's own Bill of Rights, ensuring that ACE community members have constitutional protections both under federal law and under ACE's own governing framework.
- *Dred Scott v. Sandford*, 60 U.S. 393 (1857): The Supreme Court's own language distinguishing the recognized political continuity of Native American tribal nations from the complete denial of legal personhood and citizenship to Black Americans. The foundational text of the Continuity Doctrine underlying ACE's independent sovereign-recognition claim in Section VI.
- *Morton v. Mancari*, 417 U.S. 535 (1974): Federal classifications grounded in the government's unique political relationship with a specific historically wronged community are political, not racial, and are reviewed under rational basis rather than strict scrutiny. Supports the Continuity Doctrine claim against an Equal Protection challenge.
- *Fullilove v. Klutznick*, 448 U.S. 448 (1980): Remedying the present effects of past government-sponsored discrimination is a compelling governmental

interest sufficient to satisfy strict scrutiny. Supports the Continuity Doctrine claim even under the most demanding constitutional standard.

- Federally Recognized Indian Tribe List Act of 1994, Public Law 103-454: Confirms that federal recognition of sovereign status may be established by Act of Congress independently of the administrative process under 25 C.F.R. Part 83. The authority for ACE's request that Congress recognize Black American sovereign-nation status by direct legislative act.

VIII. DEPLOYMENT PROTOCOL

This brief is maintained in current form at all times and updated annually by ACE legal counsel. Upon any challenge to ACE's jurisdictional authority within ACE Territory, the following protocol is activated:

- ACE legal counsel on permanent two-hour retainer is notified immediately upon any outside agency contact that exceeds its documented authority within ACE Territory.
- This brief is deployed as the foundational legal memorandum within 48 hours of any formal legal challenge.
- The Co-Governance Council is convened within 24 hours of any jurisdictional challenge to coordinate the ACE and tribal partner response.
- ACE Policy Institute issues a public statement within 48 hours explaining the jurisdictional basis for ACE's position in language accessible to community members and media.
- ACE Congressional Caucus members are briefed within 72 hours and prepared to make statements in support of tribal sovereignty and ACE community governance.
- ACE Media Network publishes a community-facing explanation within 48 hours so that ACE residents understand their rights and the legal basis for ACE's response.

ACE TERRITORY IS TRIBAL LAND.
THE PROTECTIONS THAT APPLY TO TRIBAL LAND APPLY TO ACE TERRITORY.

**ACE DOES NOT ASK FOR THESE PROTECTIONS. THEY EXIST BY
OPERATION OF LAW.**

Léandre Poplus, Founder

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